

7.	Gaines vs. Irvine Auto Retail II, Inc. 24-01441837	Petition to Confirm Arbitration Award The motion by defendants Irvine Auto Retail II, Inc. dba Norm Reeves Volkswagen Superstore, James Ponce, Taylor Conant, Eric Ferentz, Sal DeAlba, and Robert Yang, to confirm arbitration award is GRANTED in part and DENIED in part. The motion is GRANTED as to defendant Irvine Auto Retail II, Inc. dba Norm Reeves Volkswagen Superstore. (Code Civ. Proc., §§ 1285, 1285.4, 1286.) The court orders a judgment of dismissal shall be entered in favor of defendant Irvine Auto Retail II, Inc. dba Norm Reeves Volkswagen Superstore and against plaintiff Isaiah Clifton Gaines, with plaintiff to take nothing from this defendant, in accordance with the arbitrator's order. (Ex. A to moving papers.) The above defendant shall provide a proposed judgment by August 3, 2026. The Court will also set an OSC re: Compliance with Court Order (Submission of Proposed Judgment) for September 3, 2026, at 9:30 a.m. This is to ensure Defendant Irvine Auto Retail II, Inc. dba Norm Reeves Volkswagen Superstore to ensure the proposed judgment is timely submitted. If the Court signs the judgment, the Order to Show Cause re: Compliance with Court Order will be vacated and no appearances will be necessary. The instant motion is DENIED as to defendants James Ponce, Taylor Conant, Eric Ferentz, Sal DeAlba, and Robert Yang. These defendants were not parties to the original motion to compel arbitration, or this court's prior order 3-7-25 compelling arbitration. Moreover, there is no evidence that these defendants were parties to the arbitration; the arbitrator's order reflects that arbitration was only between plaintiff / claimant Isaiah Clifton Gaines, and defendant / respondent Irvine Auto Retail II, Inc. dba Norm Reeves Volkswagen Superstore. (Ex. A to moving papers.) Thus, there is no basis for this court to grant relief as to the individual defendants in connection with the instant motion. The court's records reflect that defendants James Ponce, Taylor Conant, Eric Ferentz, Sal DeAlba, and Robert Yang had been served with summons, but had not yet appeared when the court ordered this matter stayed pending completion of arbitration on 3-7-25. [See proof of service of summons at ROA 10 (Yang), 11 (DeAlba), 13 (Ferentz), 20 (Conant), 21 (Ponce).]
-----------	--	---

		The court orders the prior stay ordered on 3-7-25 to be LIFTED. Defendants James Ponce, Taylor Conant, Eric Ferentz, Sal DeAlba, and Robert Yang are granted until August 3, 2026, to file and serve responsive pleadings. The Status Conference re: Arbitration set for September 3, 2026, is VACATED. A Case Management Conference is set for September 3, 2026, at 9:30 a.m. in Department C12. Clerk shall give notice to all parties.
8.	Padilla Hernandez vs. Pacific Specialty Insurance Company 26-01537689	Motion to Deem Facts Admitted Defendant Pacific Specialty Insurance Company's motion to deem matters admitted is GRANTED. (See Code Civ. Proc., § 2033.280.) The court orders the matters set forth in defendant's first set of requests for admission to plaintiff Mario Padilla Hernandez (Doern Decl. at Ex. A) deemed admitted. Sanctions in the amount of \$960 are GRANTED in favor of defendant and against plaintiff, payable within 30 days of notice. Defendant shall give notice of this ruling.
9.	Beijing Luode Property Management Co., Ltd. vs. Qin 20-01151826	Motion for Attorney Fees On the Court's own motion, this hearing is CONTINUED to August 14, 2026. Court orders Clerk to give notice.
10.	Perry vs. Prestige Surgery Center at Newport Beach 24-01409325	Motion for Summary Judgment and/or Adjudication OFF CALENDAR